

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2023PRDE008576: IN THE MATTER OF FRANCISCO CARDENAS

07/22/2026 in Department J6

Hearing on Petition to Modify Bond Requirement

Decedent was survived by his two adult children, Michael Jordie Cardenas and Delanie Esther Cardenas.

When the Petition for Probate was filed, Petitioner filed a Waiver of Bond (DE-142), signed by Michael Cardenas but did not file a Waiver of Bond (DE-142) signed by Delanie Esther Cardenas. Petitioner also attached Waivers of Bond (DE-142) signed by decedent's siblings, but they are not intestate heirs.

Petitioner misstates the reason for the bond. Both of the intestate heirs did not waive bond, therefore bond was required. Now that the estate is all cash, this is a more pressing reason to require bond. Bond also insures that the administrator will appear before court to close the account, which is overdue at this point.

Petitioner cites Probate Code §8481 and §8482 in support of this petition. Neither code section is applicable.

A Petition to Reduce Bond is brought pursuant to Probate Code §8484.

Probate Code §8484. Petition to reduce amount; affidavit; notice of hearing.

If a personal representative petitions to have the amount of the bond reduced, the petition shall include an affidavit setting forth the condition of the estate and notice of hearing shall be given as provided in Section 1220.

Petitioner has not provided an affidavit setting forth the condition of the estate.

Further, petitioner has not filed either a Petition for Final Distribution or a Report on Status of Administrator as required by Probate Code §12200. Either the Petition for Final Distribution or the Report on Status of Administration was to be filed on or before 12/09/25.

Further, petitioner states the sole asset of the estate, the real property, was sold on January 23, 2025, over a year and a half ago. The bigger cost savings to this estate would be for petitioner to file a Petition for Final Distribution and close the estate.

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The court intends to deny the request to reduce bond. The court sets an OSC re Failure to File Petition for Final Distribution on 09/16/26 at 9:00 a.m. in Department J6.